

“Plaintiff has performed all obligations required of it pursuant to the agreement.” *Id.* at ¶ 10. In support of McKellar’s request for entry of default judgment, it filed a declaration stating that the contract “was entered into on or about October 4, 2022 between MTSL and Enegix Mining Group, LLP.... I...have personal knowledge that the work contracted for was completed in full on or about November 24, 2022.” Red Dog RJN, Exh. 2, McKellar Decl. ISO Default Judgment, ¶ 2. “MTSL performed and completed the contracted work on or about November 24, 2022.” *Id.* at ¶ 4. McKellar also filed a declaration in support of its request for default judgment stating, “Invoice No. 1130 was sent on or about the date of completion....” Red Dog RJN, Exh. 3, Ingraham Decl. ISO Default Judgment, ¶ 3. Invoice No. 1130 shows the last date of logging as 10/24/2022, and all subsequent fees are late fees. *Id.* at Exh. 2. “Invoice No. 1129 was sent on or about the date of completion....” *Id.* at ¶ 4. Invoice No. 1129 shows the date of logging as 11/24/2022, with all subsequent charges as late fees. *Id.* at Exh. 3.

The primary evidence for plaintiff’s opposition is the declaration of Doug McKellar, President and Chief Executive Officer for McKellar. He states the contract was to harvest 73 acres of timber from the property, but McKellar only completed 70.18 acres, leaving 2.82 acres to be cleared, consequently meaning the project has not been completed. McKellar Decl., ¶ 3. Such is insufficient to meet Plaintiff’s burden to establish the probable validity of the claim.

As asserted by Red Dog, completion of work occurs after labor ceases for a continuous 60 day period. Civ. Code § 8180(a). Plaintiff has provided no evidence that any work occurred after November 24, 2022 and the filing of the mechanic’s lien on October 7, 2024. Therefore, absent other evidence to the contrary, to be timely, a lien would have to have been filed within 150 days of November 24, 2022. Such did not occur.

The argument the project has not been completed, if successful, might assist Plaintiff in arguing the lien was timely made if its contention was that all work had been completed within 90 days prior to the recordation of the mechanic’s lien. However, its argument the project had not yet been completed even at the time of recordation of the lien would lead to the conclusion the lien was recorded prematurely and should still be expunged. Therefore, short of evidence there was ongoing work between November 24, 2022 and ninety days prior to the recording of the lien, Plaintiff has not established the probable validity of the claim underlying the lien.

Because the court finds the above sufficient basis to release the lien, it need not reach Red Dog’s other arguments regarding the validity of the lien.

5. CU0001842 Charles Eugene Murdock v. Jodi Michelle Andrews

Defendant Donald Leslie Ringen’s motion for stay of case pending conclusion of criminal case against Defendant Jodi Michelle Andrews is denied.

Legal Standard

Pursuant to Code of Civil Procedure § 128(a)(3), every court has the power to provide for the orderly conduct of proceedings, including the power to stay a civil action pending outcome of a related criminal case.

Courts recognize the dilemma faced by a Defendant who must choose between defending the civil litigation by providing testimony that may be incriminating on the one hand, and losing the case by asserting the constitutional right and remaining silent, on the other hand. At the same time, courts must also consider the interests of the Plaintiff in civil litigation where the Defendant is exposed to parallel criminal prosecution. Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Added to the mix, of course, is the interest of the Courts in fairly and expeditiously disposing of civil cases, and in efficiently utilizing judicial resources. Courts that are confronted with a civil Defendant who is exposed to criminal prosecution arising from the same facts weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible. One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution. Another possibility is to... [preclude] a litigant who claims the constitutional privilege against self-incrimination in discovery from waiving the privilege and testifying at trial to matters upon which the privilege had been asserted."

Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 305-307.

Analysis

At bar, the criminal action against Defendant Andrews involves the same incident that forms the basis for Plaintiff's complaint.

'There may be cases where the requirement that a criminal Defendant participate in a civil action, at peril of being denied some portion of his worldly goods, violates concepts of elementary fairness in view of the Defendant's position in an inter-related criminal prosecution. On the other hand, the fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation. The overall interest of the Courts that justice be done may very well require that the compensation and remedy due a civil Plaintiff should not be delayed (and possibly denied). The Court, in its sound discretion, must assess and balance the nature and substantiality of the injustices claimed on either side.'

[Citation.]

People v. Coleman (1975) 13 Cal.3d 867, 885.

Under circumstances where the silence of a Defendant is "constitutionally guaranteed, the Court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible." *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690. "While accommodation in this regard is sometimes made to a Defendant in a civil action, it is done from the standpoint of fairness, not from any constitutional right. [Citation.] The self-incrimination privilege is not applicable to matters that will subject a witness to civil liability." *Blackburn v. Superior Court* (1993) 21 Cal.App.4th 414, 425-426 fn. 11.

“[C]ourts are [also] guided by the strong principle that any elapsed time other than that reasonably required for pleadings and discovery ‘is unacceptable and should be eliminated.’ [Citation.] Courts must control the pace of litigation, reduce delay, and maintain a current docket so as to enable the just, expeditious, and efficient resolution of cases. [Citation.]” *Fuller, supra*, 87 Cal.App.4th at 306-307.

Defendant Ringen argues any responses Defendant Andrews provides to Plaintiff’s allegations in this action could implicate Defendant Andrews’ Fifth Amendment right against self-incrimination in the parallel criminal action, and as such implicate Defendant Ringen’s rights as well. The court finds that the nature and substance of the interests and purported injustices claimed by Defendant Ringen and, conversely, Plaintiff, on balance weigh against granting a blanket stay of the proceedings.

The court notes that Defendant Andrews is not entitled to decide for herself whether the privilege against self-incrimination may be invoked.” *Fuller, supra*, 87 Cal.App.4th at 305. “ ‘Rather, this question is for the Court to decide after conducting “*a particularized inquiry, deciding, in connection with each specific area that the questioning party seeks to explore*, whether or not the privilege is well-founded.” [Citation.]’ [Citation.]” *Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045, original italics.

Relevant to the request for a blanket stay of the civil case, “a blanket refusal to testify is unacceptable; a person claiming the Fifth Amendment privilege must do so with specific reference to particular questions asked or other evidence sought. [O]nce this is done, the trial Court must undertake a particularized inquiry with respect to each specific claim of privilege to determine whether the claimant has sustained his burden of establishing that the testimony or other evidence sought might tend to incriminate him.” *Warford, supra*, 160 Cal.App.3d at 1045 fn. 8. At bar, the motion to stay fails to include any information or reasoned argument showing “1) the nature of the information sought to be disclosed, 2) implications derived from the question asked, 3) the nature and verifiability of any investigation or proceeding claimed to justify the fear of incrimination, or the possibility that any such investigation or proceeding may be commenced, 4) matters disclosed by counsel in argument on the claim of privilege, and 5) evidence previously admitted.” *Ibid*.

For example, the motion to stay includes no information or evidence showing the nature of any discovery propounded by Plaintiff on Defendants, or which discovery requests seek the disclosure of matters which may tend to incriminate Defendant Andrews. More, Defendant Ringen, and not Defendant Andrews brought the instant motion. Defendant Ringen fails to make the above connection in regards to which requests may tend to incriminate Defendant Andrews, and thus fails to make any showing of how such discovery would then incriminate Defendant Ringen.

The Court “must also consider the interests of the Plaintiff in civil litigation Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Among the myriad purposes of the civil discovery statutes is to safeguard against surprise and gamesmanship, and to prevent delay.” *Fuller, supra*, 87 Cal.App.4th at 306. Plaintiff, and the Court, have an interest resolving the claims alleged in this civil litigation in an

appropriate manner without unnecessary or unwarranted delay. For these reasons, the motion to stay is denied.

6. CU0002046 Glenn Kalaveras, et al. v. Kelly Purves

Plaintiffs' Glenn Kalaveras and Jessica Calderon's motion for order permitting substituted service on Defendant Kamaljit Takhar is denied as an order permitting substituted service is not a necessary prerequisite.

Code of Civil Procedure section 415.20(b) states:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

Code Civ. Proc. § 415.20; *see id.* Comment for subd. (b) ("The papers must be left in the presence of a competent member of the household or a person apparently in charge of such business, as to case may be, who must be at least 18 years of age and be informed of the general nature of the papers. In addition, a copy of the papers thereafter must be mailed (by ordinary first-class mail, postage prepaid) to the person to be served at the place of delivery.").

7. CU0002207 Deborah J Carver v. Michael W. Horner

Plaintiff Deborah J. Carver's proposed settled statements for demurrer hearing 10-10-2025 and motion under CCP § 473 hearing 12-12-2026 are moot. The court entered its decision and order sustaining demurrer on October 16, 2025, entry of judgment on November 3, 2025, and order on motion to vacate judgment and disqualify counsel on December 12, 2025.

8. CU0002305 Christ, Jason v. Hannah, Jordan

9. CU0002304 Jason Christ v. Justis Barquilla

On the Court's motion, the hearing for these matters are continued until March 27, 2026 at 10:00 a.m. Judge Tice-Raskin issued tentative rulings prior to the March 6, 2026 hearing and, on March 9, 2026, continued the hearing at the request of Plaintiff to March 20, 2026. Judge Tice-Raskin is no longer available on March 20, 2026. The clerk shall give notice to all parties of the new hearing date.

10. CU22-086174 Michael Robert Pasner vs. Song Kowbel